

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Chelsea Yogerst	Team: Team # 3	CCRB Case #: 201410986	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 10/26/2014 1:40 PM	Location of Incident: In front of 308 West 125th Street	18 Mo. SOL 4/26/2016	Precinct: 28
Date/Time CV Reported Sun, 10/26/2014 3:32 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 10/26/2014 3:32 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Creel Brown	14622	955770	028 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Christophe Freda	14764	955928	028 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Creel Brown	Discourtesy: PO Creel Brown spoke rudely to § 87(2)(b) Howell.	A . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case summary

On November 6, 2014, at approximately 1:40 p.m., § 87(2)(b) double parked her vehicle on West 124th Street in Manhattan so that she could buy a CD off a vendor.

As she stood on the street, § 87(2)(b) observed PO Creel Brown and PO Christopher Freda, of the 28th Precinct, walking towards her vehicle. In response, § 87(2)(b) ran five feet back towards her vehicle. When § 87(2)(b) arrived at her vehicle, she stood near the driver's side, while PO Brown stood at the front of the vehicle. § 87(2)(b) stated to PO Brown, "Can I get off with a warning, you didn't even get your book out yet." PO Brown yelled "No! You were here for eight to ten minutes."

At that point, PO Freda went to the front of § 87(2)(b)'s vehicle, pointed at a PBA card that was located on the dashboard and indicated it to PO Brown. PO Brown replied, "I don't care, no!"

§ 87(2)(b) then attempted to move closer to the officers to speak to them. PO Brown told § 87(2)(b) to "back the fuck up" (**Allegation A**). § 87(2)(b) immediately put her hands up and backed up to the sidewalk. § 87(2)(b) asked the CD vendor if he heard PO Brown curse at her. In response, the vendor told § 87(2)(b) not to say anything.

§ 87(2)(b) went back to her vehicle and sat in the driver's seat as PO Brown wrote the summons. After five minutes, PO Brown knocked on the window and § 87(2)(b) opened the door to retrieve her summons for double parking. PO Brown and PO Freda then left the location on foot.

§ 87(2)(g)

Mediation, Criminal and Civil Histories

§ 87(2)(b) was offered mediation, but preferred to pursue an investigation § 87(2)(b).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

On January 23, 2015, the undersigned investigator inquired whether § 87(2)(b) filed a notice of claim with the city of New York regarding this incident has been made. A response has yet to be received as of the date of this report.

Civilian and Officer CCRB History

- PO Brown has been a member of the service for 1 year and has no prior CCRB complaints (encl. A-1).
- This is § 87(2)(b)'s first CCRB complaint (encl. A-2).

Additional Officers

- PO Freda was on scene during the incident but did not interact with § 87(2)(b) during the incident. § 87(2)(g)

Explanation of Subject Officer Identification

- § 87(2)(b) obtained PO Brown's name and tax registry number from the summons she received. PO Brown matches the physical description that § 87(2)(b) provided and acknowledged that he issued § 87(2)(b) the summons.

Findings and Recommendations

Allegation A-Discourtesy: PO Creel Brown spoke rudely to § 87(2)(b)

It is undisputed that § 87(2)(b) was double-parked and received a summons during the incident. § 87(2)(g)

In the statement she provided to the CCRB on November 6, 2014, (encl. C-1-C-5) § 87(2)(b) alleged that when she began to approach PO Brown to speak to him, he told her to "back the fuck up."

In the statement he provided to the CCRB on January 15, 2014 (encl. D-1-D-7), PO Brown admitted to telling § 87(2)(b) to back-up when she approached him from behind, but did not recall making the alleged statement to § 87(2)(b) and denied cursing at her at any point

Although field work was conducted for this investigation, the two street vendors, one of which sold belts and other accessories but not CD's, found near the incident location denied witnessing the interaction between § 87(2)(b) and PO Brown.

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be *unsubstantiated*.

§ 87(2)(g), § 87(4-b)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
 Title/Signature Print Date